IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.
I.A. No. of 2024
In
O.S.No. of 2024

Between:

Kalyanam Murali

---Petitioner/Plaintiff.

And

Shaik Kareemullah

---Respondent/Defendant.

To;

Shaik Kareemullah,
S/o. Mahabub Jani,
Staff No. E361092, JA (FIN)
APSRTC, Vijayawada, NTR District,
Andhra Pradesh, Pin: 520 002,
Cell: 7382902882.

Whereas on the day of 2024 the above named

Petitioner filed a petition against Respondent for arrest before judgment. You are hereby required to appear in court on the day of 2024. in the

forenoon in person or by a pleader duly instructed and able to answer all the material questions related to the above proceedings. Also take notice in default of your appearance on the aforesaid day. The issue will be settled and the petition heard and date remaining in your absence you shall also bring your or send by your pleader and document which the petitioner desires to inspect and any document on which you intend to rely in support of your defense. You are required to fill a written statement in the Court on or before the day of 2024,

Given under my hand and seal of the Court, this day of of 2024.

NAZAR

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA
I.A. No. of 2024.
In
O.S.No. of 2024.

Between:

Kalyanam Murali

---Petitioner/Plaintiff.

And

Shaik Kareemullah

---Respondent/Defendant.

PROCESS MEMO FILED ON BEHALF OF THE PLAINTIFF UNDER ORDER VII, RULE 9

S.No.	Name of the Party Address	Purpose of which Summoned	Allowance	Process fees
1	Shaik Kareemullah, S/o. Mahabub Jani, Staff No. E361092, JA (FIN) APSRTC, Vijayawada, NTR District, Andhra Pradesh, Pin: 520 002, Cell: 7382902882.	For R.P. For service of Summons Through R.P. For service of Summons Through Court		40-00 5-00 35-00
	Total			85-00

VIJAYAWADA,

DT. ADVOCATE FOR THE PETITIONER/PLAINTIFF.

Mr. A.S.S.S
Advocates for the
Petitioner/Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2024
In
O.S.No. of 2024

Between:

Kalyanam Murali

---Petitioner/Plaintiff.
And

Shaik Kareemullah

- - -Respondent/Defendant.

PROCESS MEMO FILED ON BEHALF OF THE PLAINTIFF UNDER ORDER VII, RULE 9.

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.
I.A. No. of 2024
In
O.S.No. of 2024

Between:

Kalyanam Murali ---Petitioner/Plaintiff.

And

Shaik Kareemullah - - -Respondent/Defendant.

THIRD PARTY AFFIDAVIT FILED UNDER SECTION 139 of C.P.C

I, Kambampati Ravi Kumar, Son of Balaraju, Hindu, aged about 48, R/o. Thimmasamudram Post & Mandal, Prakasam District, **Aadhar No. 7509 0037 3734**, do hereby solemnly affirm and sincerely state as follows :-

I am the Third party to the above Suit and I know the facts of the case. And I know that the respondent in the above suit is trying to fly away to abroad. And the respondent is not having any immovable properties in India. The Petitioner will suffer huge and irreparable loss if the respondent flies away to abroad.

Facts mentioned in the Suit through advocate and the same are all true and correct to the best of my knowledge, belief and information.

Hence, I am giving this affidavit.

Filed by Be pleased to consider,

Advocate for the Petitioner/Plaintiff. Deponent.

Solemnly affirmed and signed before me on this day of 2024 at Vijayawada.

Vijayawada,

Dt. Advocate.

Mr. A.S.S.S.
Advocates for the
Petitioner/Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA.

I.A. No. of 2024
In
O.S.No. of 2024

Between:

Kalyanam Murali

---Petitioner/Plaintiff.
And

Shaik Kareemullah

- - -Respondent/Defendant.

THIRD PARTY AFFIDAVIT FILED UNDER SECTION 139 of C.P.C

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.

I.A. No. of 2024
In
O.S.No. of 2024

Between:

Kalyanam Murali ---Petitioner/Plaintiff.

And

Shaik Kareemullah - - -Respondent/Defendant.

THIRD PARTY AFFIDAVIT FILED UNDER SECTION 139 of C.P.C

I, Karavadi Uma Maheswara Rao, Son of Subbarao, Hindu, aged about 33, R/o. Valivetivaripalem, Karavadi Mandal, Prakasam District, **Aadhar No. 3105 2975 4713**, do hereby solemnly affirm and sincerely state as follows :-

I am the Third party to the above Suit and I know the facts of the case. And I know that the respondent in the above suit is trying to fly away to abroad. And the respondent is not having any immovable properties in India. The Petitioner will suffer huge and irreparable loss if the respondent flies away to abroad.

Facts mentioned in the Suit through advocate and the same are all true and correct to the best of my knowledge, belief and information.

Hence, I am giving this affidavit.

Filed by Be pleased to consider,

Advocate for the Petitioner/Plaintiff. Deponent.

Solemnly affirmed and signed before me on this day of 2024 at Vijayawada.

Vijayawada,

Dt. Advocate

Mr. A.S.S.S.
Advocates for the
Petitioner/Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2024
In
O.S.No. of 2024

Between:

Kalyanam Murali
---Petitioner/Plaintiff.

And

Shaik Kareemullah
- - -Respondent/Defendant.

THIRD PARTY AFFIDAVIT FILED UNDER SECTION 139 of C.P.C

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
K. KIRAN KUMARI.
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.
I.A. No. of 2024
In
O.S.No. of 2024

Between:

Kalyanam Murali ---Petitioner/Plaintiff.

And

Shaik Kareemullah - - -Respondent/Defendant.

AFFIDAVIT FILED ON BEHALF OF THE PETITIONER/PLAINTIFF UNDER SECTION 139 of C.P.C

I, Madamanchi Chandramouli S/o Nagaiah, Hindu, aged about 59 years, Resident of Envy Home Godavari 103, Sri Ramachandra Nagar, Vijayawada-520 003, Cell: 9490538599, Aadhar No. 9058 7122 6616., do hereby solemnly affirm and sincerely state as follows :-

I am the Petitioner in the above case and that I am well acquainted with the facts of the case.

I filed the above case before this Honorable Court for the suit debt amount.

I humbly submitted that the Respondent/Defendant borrowed an amount of Rs: 10,00,000/- (Rupees Ten Lakhs only) from me on 29-10-2021 for the purpose of family expenses and executed a demand promissory note in favor of me on the even date at Vijayawada, agreeing to repay the said amount together with compound interest at 18% either to me or to my order on demand.

I further submitted that I made several demands calling upon the Respondent/Defendant to discharge the entire suit promissory note debt together with agreed interest. But the defendant has been procrastinating the same on some pretext or other and did not pay any amount under the suit promissory note debt to me.

Hence I obliged to file the instant suit against the Respondent/Defendant for recovery of the suit promissory note debt together with interest. Even though the interest is compound interest @ 18% P.A. I am claiming simple interest @18% P.A.

The Respondent/Defendant is not entitled to any debt relief acts 45/87 or 2/90.

The Respondent/Defendant is now trying to fly away to abroad (i.e., Singapore) without discharging suit to pronote debt and interest. The Respondent/Defendant is flying away only to escape from the suit pronote debt liability. The Respondent is not having any immovable property or fixed abide residence in India. It is very much impossible to get his presence in the suit.

Hence I am giving this affidavit

I have got a strong prima facie case and balance of convenience lying in my favor.

Hence, I pray that the honorable court may be pleased to order conditional arrest of the Respondent/Defendant before judgment, in case the respondent fails to give security, pending disposal of the main suit in the interests of justice. Otherwise I will be put to very much and irreparable loss.

Filed by Be pleased to consider

Advocate for Petitioner/Plaintiff Deponent.

Solemnly affirmed and signed before me on this of 2024.

Vijayawada,

Date: Advocate

Mr. A.S.S.S.
Advocates for the
Petitioner/Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA.

I.A. No. of 2024
In
O.S.No. of 2024

Between:

Kalyanam Murali

---Petitioner/Plaintiff.

And
Shaik Kareemullah
- - -Respondent/Defendant.

AFFIDAVIT FILED ON BEHALF OF THE PETITIONER / PLAINTIFF UNDER SECTION 139 of C.P.C

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.

I.A. No. of 2024
In

O.S.No. of 2024

Between :

Kalyanam Murali S/o Apparao, aged about 54 years R/o Door No. 6-973/28B DVR Nagar, Jaggayyapeta, Krishna District, Andhra Pradesh, Cell: 9848032809.

---Petitioner/Plaintiff.

And

Shaik Kareemullah, S/o. Mahabub Jani, Staff No. E361092, JA (FIN)APSRTC, Vijayawada, NTR District, Andhra Pradesh, Pin: 520 002, Cell: 9848445228,7382902882.

---Respondent/Defendant.

PETITION FILED ON BEHALF OF THE PETITIONER/PLAINTIFF UNDER ORDER XXXVIII RULE 1(b) AND SECTION 151 OF C.P.C.

For the reasons stated in the accompanying affidavit, the Petitioner/ Plaintiff prays that the honorable court may be pleased to order conditional arrest of the Respondent/Defendant before judgment. In case the Respondent/Defendant fails to give security, pending disposal of the main suit. In the interest of justice.

Vijayawada, Be pleased to consider

Date:

Advocate for Petitioner/Plaintiff

Mr. A.S.S.S.
Advocates for the
Petitioner/Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2022
In
O.S.No. of 2022

Between:

Kalyanam Murali

---Petitioner/Plaintiff.

And
Shaik Kareemullah
- - -Respondent/Defendant.

PETITION FILED ON BEHALF OF THE PETITIONER/PLAINTIFF UNDER ORDER XXXVIII RULE 1(b) AND SECTION 151 OF C.P.C.

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

O.S.No. of 2024

Between:

Kalyanam Murali ---Petitioner/Plaintiff.

And

Shaik Kareemullah - - -Respondent/Defendant.

To;
Shaik Kareemullah,
S/o. Mahabub Jani,
Staff No. E361092,
JA (FIN)APSRTC, Vijayawada,
NTR District, Andhra Pradesh,
Pin: 520 002, Cell: 9848445228,
7382902882.

Whereas on the day of 2022 the above named

Petitioner filed a petition against Respondent for recovery of suit pronote money. You are hereby required to appear in the court on the day of 2022. in the

forenoon in person or by a pleader duly instructed and able to answer all the material questions related to the above proceedings. Also take notice in default of your appearance on the aforesaid day. The issue will be settled and the petition heard and date remaining in your absence you shall also bring your or send by your pleader and document which the petitioner desires to inspect and any document on which you intend to rely in support of your defense. You are required to fill a written statement in the Court on or before the day of 2022,

Given under my hand and seal of the Court, this day of of 2022.

NAZAR.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA
O.S.No. of 2024.

Between:

Kalyanam Murali ---Petitioner/Plaintiff.

And

Shaik Kareemullah - - -Respondent/Defendant.

PROCESS MEMO FILED ON BEHALF OF THE PLAINTIFF UNDER ORDER VII, RULE 9.

S.No.	Name of the Party Address	Purpose of which Summoned	Allowance	Process fees
1	Shaik Kareemullah, S/o. Mahabub Jani, Staff No. E361092, JA (FIN)APSRTC, Vijayawada, NTR District, Andhra Pradesh, Pin: 520 002, Cell: 9848445228, 7382902882.	For R.P For service of Summons Through R.P For service of Summons Through Court		30-00 5-00 35-00
	Total			65-00

VIJAYAWADA,
DT. ADVOCATE FOR THE PLAINTIFF

Mr. A.S.S.S.
Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

O.S.No. of 2024

Between:

Kalyanam Murali
---Petitioner/Plaintiff.

And

Shaik Kareemullah
- - -Respondent/Defendant.

PROCESS MEMO FILED ON BEHALF OF THE PLAINTIFF UNDER ORDER VII, RULE 9

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

Mr. A.S.S.S.
Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

O.S.No. of 2024

Between:

Kalyanam Murali
---Petitioner/Plaintiff.

And

Shaik Kareemullah
- - -Respondent/Defendant.

LIST OF DOCUMENTS FILED ON BEHALF OF THE PLAINTIFF UNDER ORDER VII, RULE 14 OF C.P.C.

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

VAKALAT

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA
O.S.No. of 2024.

Between :
Kalyanam Murali
---Petitioner/Plaintiff.

And

Shaik Kareemullah ---Respondent/Defendant.

I, Kalyanam Murali S/o Apparao, aged about 54 years R/o Door No. 6-973/28B DVR Nagar, Jaggayyapeta, Krishna District, Andhra Pradesh, Cell: 9848032809. In the above case do hereby appoint and retain

Sri. Avirneni Srinivasa Syam Sunder, **Smt.P. Lavanya, Smt. K. Prasanna, Smt.K. Devi Priyanka, Sri K.Venkateswara Rao**, Advocates, VIJAYAWADA.

to appear for me in the above case and to conduct and prosecute or defend the same and all proceedings that may be taken in respect of any application for execution of any order passed there in and sign and admit on my behalf and compromise petition there in any state. We empower the above named Advocate to appear in all miscellaneous proceedings in the above petition or matter till all the orders are satisfied or adjusted and to obtain the return of documents and draw money that might be payable to advocate, to accept on my behalf service of notices in the petition, application or appeal etc., in any court with regard to the said petition, or matter till the final disposal of the same. I execute this vakalat as per Order III Rule 4 of Civil Procedure Code.

ATTESTATION

I certify that the contents of this Vakalat are read over and explained to the executant in my presence, who appeared perfectly to understand the same and signed / put the thumb mark on the same in my presence on this day of , 2024.

Station: Vijayawada,

Date :

Advocate.

Mr. A.S.S.S.
Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024

Between:

Kalyanam Murali
---Petitioner/Plaintiff.
And

Shaik Kareemullah

---Respondent/Defendant.

VAKALATH

Filed on behalf of the Plaintiff

Filed on:

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

Mr. A.S.S.S.
Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024.

Between:

Kalyanam Murali
---Petitioner/Plaintiff.
And

Shaik Kareemullah

---Respondent/Defendant.

DUPLICATE COPY OF PLAINT FILED ON BEHALF OF THE PLAINTIFF UNDER ORDER IV RULE 1(1) OF C.P.C.

PLAINT FILED ON BEHALF OF THE PLAINTIFF UNDER SECTIONS 26 ORDER VII RULE 1 OF C.P.C.

FILED BY:
A. S. SYAM SUNDER,
K. LAVANYA,
P. SAILAJA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

O.S.No. of 2024.

Between:
Kalyanam Murali

---Petitioner/Plaintiff.

And

Shaik Kareemullah ---Respondent/Defendant.

MEMO FILED ON BEHALF OF THE PLAINTIFF

It is submitted that an amount of Rs: 22,926/- (Rupees Twenty Two thousand Nine hundred and twenty six rupees Only) is paid towards the Court fee in the above suit in the account of Honorable Principal Junior Civil Judge's Court Vijayawada Bank account State Bank of India, Vijayawada Civil Courts Branch.

Vijayawada, Be Pleased to Consider,

Date:

Advocate for the Plaintiff.

Mr. A.S.S.S.

Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024

Between:

Kalyanam Murali
---Petitioner/Plaintiff.

And

Shaik Kareemullah

---Respondent/Defendant.

MEMO FILED ON BEHALF OF THE PLAINTIFF

FILED BY:

A. S. SYAM SUNDER,
P.LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024.

Between:
Kalyanam Murali ---Petitioner/Plaintiff.

And

Shaik Kareemullah ---Respondent/Defendant.

STATEMENT OF ADDRESS FILED ON BEHALF OF PLAINTIFF UNDER ORDER VI RULE 14A OF C.P.C.

1.**DESCRIPTION OF THE PLAINTIFF:**

Madamanchi Chandramouli S/o Nagaiah, Hindu, aged about 59 years, Resident of Envy Home Godavari 103, Sri Ramachandra Nagar, Vijayawada-520 003, Cell: 9490538599, Aadhar No. 9058 7122 6616, within the jurisdiction of this Honorable Court.

ADDRESS FOR SERVICE.

Sri. Avirneni Srinivasa Syam Sunder, Smt. P. Lavanya, Smt. K.Prasanna, Smt.K. Devi Priyanka, Sri K.Venkateswara Rao, Advocates, VIJAYAWADA.

DESCRIPTION OF THE DEFENDANT:

Vykuntapu Pradeep Kumar, S/o Venkateswara Rao, Hindu, aged about 46 years, R/o. H.No. 7-307/8, Ramaiah Nagar, 1st Line, Ongole, Prakasam District, Andhra Pradesh - 523 001, Cell: 8897317894, Aadhar No. 2545 5434 0307.

The address for service of the summons and all notices is the same as above

Filed by Be pleased to consider,

Advocate for the Plaintiff. Plaintiff.

The facts mentioned above are all true and correct to the best of my Knowledge, belief and information.

Vijayawada,

Dt. Plaintiff.

Mr. A.S.S.S.
Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024.

Between:

Kalyanam Murali
---Petitioner/Plaintiff.
And

Shaik Kareemullah

---Respondent/Defendant.

STATEMENT OF ADDRESS FILED ON BEHALF OF PLAINTIFF UNDER ORDER VI RULE 14A OF C.P.C.

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024.

Between:

Kalyanam Murali
---Petitioner/Plaintiff.

And

Shaik Kareemullah ---Respondent/Defendant.

VERIFICATION AFFIDAVIT FILED UNDER ORDER VI RULE 15(4) OF C.P.C

I, Madamanchi Chandramouli S/o Nagaiah, Hindu, aged about 59 years, Resident of Envy Home Godavari 103, Sri Ramachandra Nagar, Vijayawada-520 003, Cell: 9490538599, Aadhar No. 9058 7122 6616, do hereby solemnly affirm and sincerely state as follows :-

1. I am the petitioner in the above proceedings and I know the facts of the case.

2. I filed the above case before this Honorable Court for the recovery of Suit debt amount.

3. I know the facts mentioned in the parts One to Five personally and I know the facts mentioned in the parts Six to Eleven through my advocate and the same are all true and correct to the best of my knowledge, belief and information.

4. Hence, I am giving this affidavit.

Filed by Be pleased to consider,

Advocate for the Petitioner. Deponent.

Solemnly affirmed and signed before me on this the day of 2024 at Vijayawada.

Vijayawada,
Dt. Advocate.

Mr. A.S.S.S.
Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024

Between:

Kalyanam Murali
---Petitioner/Plaintiff.
And

Shaik Kareemullah

---Respondent/Defendant.

VERIFICATION AFFIDAVIT FILED UNDER ORDER VI RULE 15(4) OF C.P.C

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024.

Between:
Kalyanam Murali

---Petitioner/Plaintiff.

And

Shaik Kareemullah ---Respondent/Defendant.

PROOF AFFIDAVIT FILED BY THE PLAINTIFF UNDER SECTION 26(2) of C.P.C

I, Madamanchi Chandramouli S/o Nagaiah, Hindu, aged about 59 years, Resident of Envy Home Godavari 103, Sri Ramachandra Nagar, Vijayawada-520 003, Cell: 9490538599, Aadhar No. 9058 7122 6616, do hereby solemnly affirm and sincerely state as follows :-

1. I am the petitioner in the above case and that I am well acquainted with the facts of the case.

2. I filed the above case before this Honorable Court for the suit debt amount.

3. I humbly submitted that the defendant borrowed an amount of Rs: 10,00,000/- (Rupees Ten Lakhs only) from me on 29-10-2021 for the purpose of family expenses and executed a demand promissory note in favor of me on the even date at Vijayawada, agreeing to repay the said amount together with compound interest at 18% either to me or to my order on demand.

4. I further submitted that I made several demands calling upon the defendant to discharge the entire suit promissory note debt together with agreed interest. But the defendant has been procrastinating the same on some pretext or other and did not pay any amount under the suit promissory note debt to me.

5. Hence I obliged to file the instant suit against the defendant for recovery of the suit promissory note debt together with interest. Even though the interest is compound interest @ 18% P.A. I am claiming simple interest @18% P.A.

6. The defendant is not entitled to any debt relief acts 45/87 or 2/90.

Hence I am giving this affidavit

Filed by Be pleased to consider

Advocate for Plaintiff Deponent.

Solemnly affirmed and signed before me on the day of 2022.

VIJAYAWADA,

Date: Advocate.

Mr. A.S.S.S.
Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

O.S.No. of 2024.

Between:

Kalyanam Murali
---Petitioner/Plaintiff.
And

Shaik Kareemullah
---Respondent/Defendant.

PROOF AFFIDAVIT FILED BY THE PLAINTIFF UNDER SECTION 26(2) of C.P.C

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
Email:
syamavirneni3335@gmail.com

Website:
www.syamlegalassociates.com

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA.

O.S.No. of 2024

Between:
Kalyanam Murali

---Petitioner/Plaintiff.

And

Shaik Kareemullah ---Respondent/Defendant.

PLAINT FILED ON BEHALF OF THE PLAINTIFF UNDER SECTIONS 26 ORDER VII RULE 1 OF C.P.C.

1. **DESCRIPTION OF THE PLAINTIFF:**

   Madamanchi Chandramouli S/o Nagaiah, Hindu, aged about 59 years, Resident of Envy Home Godavari 103, Sri Ramachandra Nagar, Vijayawada-520 003, Cell: 9490538599, Aadhar No. 9058 7122 6616.

   ADDRESS OF SERVICE

   Sri. Avirneni Srinivasa Syam Sunder, Smt. P. Lavanya, Smt.K. Prasanna, Smt.K. Devi Priyanka, Sri K.Venkateswara Rao, Advocates, VIJAYAWADA.

2. **DESCRIPTION OF THE DEFENDANT:**

   Vykuntapu Pradeep Kumar, S/o Venkateswara Rao, Hindu, aged about 46 years, R/o. H.No. 7-307/8, Ramaiah Nagar, 1st Line, Ongole, Prakasam District, Andhra Pradesh - 523 001, Cell: 8897317894, Aadhar No. 2545 5434 0307.

   The address for service is the same as above.

3. **BRIEF FACTS OF THE CASE:**

   i. The plaintiff humbly submits that the defendant borrowed an amount of Rs: 10,00,000/- (Rupees Ten Lakhs only) from the plaintiff on 29-10-2021 for the purpose of family expenses and executed a demand promissory note in favor of the plaintiff on the even date at Vijayawada, agreeing to repay the said amount together with compound interest at 18% either to the plaintiff or to his order on demand.

ii. The Plaintiff further submitted that the plaintiff made several demands calling upon the defendant to discharge the entire suit promissory note debt together with agreed interest. But the defendant has been procrastinating the same on some pretext or other and did not pay any amount under the suit promissory note debt to the plaintiff. Hence the plaintiff obliged to file the instant suit against the defendant for recovery of the suit promissory note debt together with interest. Even though the interest is compound interest @ 18% P.A. The plaintiff is claiming simple interest @18% P.A.

iii. The defendant is not entitled to any debt relief acts 45/87 or 2/90.

7. PARTICULARS OF SUIT CLAIM:

Principal amount under the suit

Promissory Note Dt.29-10-2021	------	10,00,000-00
Simple interest claimed at 18% P.A.	------	1,20,000-00
Form 29-10-2021 to 28-06-2022		
Total	------	11,20,000-00

(Rupees Eleven Lakhs and Twenty thousand only)

6. **Cause of Action:** for the suit arose on 29-10-2021 when the defendant executed a demand promissory note for an amount of Rs: 10,00,000/- (Rupees Ten Lakhs only) @ 18% P.A. compound interest in favor of the plaintiff, subsequently when the plaintiff demanded the defendant to discharge the entire promissory note debt with interest, but the defendant has been procrastinating the same on some pretext or the other and at Vijayawada where the plaintiff resides it is within the jurisdiction JCJ of Vijayawada honorable Court.

6. <u>LIMITATION:</u> The suit is filed within the time of limitation. The suit is not barred by limitation.

7. <u>JURISDICTION:-</u> The suit promissory note is executed in Vijayawada and the residence of the Plaintiff is within the limits of Vijayawada Urban Mandal, Krishna District, is within the Honorable Court's Jurisdiction.

8. <u>RES-JUDICATA & RES-SUBJUDICE:-</u> No suit is pending before any Courts between the same parties and for the same relief.

9. SUIT VALUATION: Value of the suit for the purposes of jurisdiction under section 50(1) of Andhra Pradesh Court Fee and Suit Valuation Act is Rs: 11,20,000- (Rupees Eleven Lakhs Twenty thousand only)

10. COURT FEE: The Court Fee of Rs: 13,626/- is payable under Section 20(1) of Andhra Pradesh Court Fee and Suit Valuation Act.

11. PRAYER: The Plaintiff therefore prays that the honorable court may be pleased to grant a decree in favor of the Plaintiff and against the Defendant:

a. For the suit amount of Rs: Rs: 10,00,000- (Rupees Ten Lakhs only) together with subsequent simple interest on Rs: 1,20,000/- (Rupees One Lakh Twenty Thousand only) at 18% P.A. form the date of suit till the date of realization.

b. To grant costs of the suit

And

c. To grant such other relief or reliefs as the honorable court deems fit and proper in the circumstances of the case.

Filed by Be pleased to consider

Advocate for Plaintiff Plaintiff

The facts stated above are true to the best of my knowledge, information and belief.
Vijayawada.

Date: Plaintiff.

LIST OF DOCUMENTS FILED ON BEHALF OF THE PLAINTIFF

S.No.	Date	Description	Remark
1.	29-10-2021	Suit Promissory note executed by the Defendant in favor of the Plaintiff.	Original

Vijayawada,

Dt. Advocate for the Plaintiff.

Mr. A.S.S.S.
Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

O.S.No. of 2024.

Between:

Kalyanam Murali
---Petitioner/Plaintiff.
And

Shaik Kareemullah
---Respondent/Defendant.

PLAINT FILED ON BEHALF OF THE PLAINTIFF UNDER SECTIONS 26 ORDER VII RULE 1 OF C.P.C.

FILED BY:

A. S. SYAM SUNDER,
P. LAVANYA,
K. PRASANNA,
K. DEVI PRIYANKA,
K. VENKATESWARA RAO,
Advocates,
Vijayawada.
Cell: 9640543335.
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Website:
www.syamlegalassociates.com

Mr. A.S.S.S.

Advocates for the Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

O.S.No. of 2022

Between:

Madamanchi Chandramouli.

—

Plaintiff.

And

Vykuntapu Pradeep Kumar.

—

Defendant.

PLAINT FILED ON BEHALF OF THE PLAINTIFF UNDER SECTIONS 26 ORDER VII RULE 1 OF C.P.C.

FILED BY:

A. S. SYAM SUNDER,
P. RAJYA LAKSHMI,
M. SYAM PRASAD,
K. DEVI PRIYANKA,
P. LAVANYA,
K. VENKATESWARA RAO,
P. SARADA,
B.V. ARUNA DEVI,
R. YAMINI,
K. PRASANNA,
P. SAILAJA,
M.KIRANMAI,
K. KIRAN KUMARI.
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IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2022
In
O.S.No. of 2022

Between:

Madamanchi Chandramouli

---Petitioner/Plaintiff.

And

Vykuntapu Pradeep Kumar

---Respondent/Defendant.

AFFIDAVIT FILED BY THE PETITIONER FOR URGENT ORDERS SECTION 139 OF C.P.C.

I, Madamanchi Chandramouli S/o Nagaiah, Hindu, aged about 59 years, Resident of Envy Home Godavari 103, Sri Ramachandra Nagar, Vijayawada-520 003, Cell: 9490538599, Aadhar No. 9058 7122 6616. do hereby solemnly affirm and sincerely state as follows:

1. I am the petitioner herein. I am well acquainted with the facts of the case.
2. I have filed the above named case in this Honorable Court for the recovery of money.
3. As urgent orders have to be obtained in the matter, it is just and necessary in the interests of justice of the petition that the Enclosed

Be taken on file, urgently and numbered out of order.

Be pleased to consider.

Deponent

Solemnly affirmed before me this the day of 2022 the contents of this affidavit having been truly and audibly read over and explained in Telugu and admitted by him to the correct, who signed his name. Put His mark in my presence.

Place: Vijayawada, Signed Before me

Date :

Advocate.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2022
In
O.S.No. of 2022

Between:

Madamanchi Chandramouli

---Petitioner/Plaintiff.

And

Vykuntapu Pradeep Kumar

---Respondent/Defendant.

OUT OF ORDER

PETITION FILED ON BEHALF OF THE PETITIONER SECTION 57 OF C.R.P.

As orders on the accompanying petition have to be obtained urgently, the Petitioner Prays that the Honorable Court may be pleased to take Suit on file and to number the same OUT OF ORDER in the interest of justice.

Be pleased to consider.

Place: Vijayawada,

Date : Advocate for Petitioner.

Mr. A.S.S.S.

Advocates for the Petitioner/Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2022

In

O.S.No. of 2022

Between:

Madamanchi Chandramouli.

---Petitioner/Plaintiff.

And

Vykuntapu Pradeep Kumar.

---Respondent/Defendant.

OUT OF ORDER

PETITION FILED ON BEHALF OF THE PETITIONER SECTION 57 OF C.R.P.

FILED BY:

A. S. SYAM SUNDER,
P. RAJYA LAKSHMI,
M. SYAM PRASAD,
K. DEVI PRIYANKA,
P. LAVANYA,
K. VENKATESWARA RAO,
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K. KIRAN KUMARI.

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CALL FOR SECURITY NOTICE
(TO CALL FOR SECURITY FOR FULFILLMENT OF DECREE)
ORDER 38 RULE 5 C.P.C.
IN THE COURT OF THE PRINCIPAL JUNIOR CIVIL JUDGE, AT VIJAYAWADA

I.A. No. of 2022
In
O.S.No. of 2022

Between:
Madamanchi Chandramouli
S/o Nagaiah, Hindu,
aged about 59 years,
Resident of Envy Home Godavari 103,
Sri Ramachandra Nagar,
Vijayawada-520 003,
Cell: 9490538599,
Aadhar No. 9058 7122 6616.
---Petitioner/Plaintiff.

And

Vykuntapu Pradeep Kumar,
S/o Venkateswara Rao,
Hindu, aged about 46 years,
R/o. H.No. 7-307/8, Ramaiah Nagar,
1st Line, Ongole, Prakasam District,
Andhra Pradesh - 523 001,
Cell: 8897317894,
Aadhar No. 2545 5434 0307 ---
Respondent/Defendant.
To
The field Assistant of the Principal Junior Civil Judge Court Vijayawada.

Whereas on the application of the Petitioner / Plaintiff in this suit has applied to the Court to call upon you the defendant to furnish security within five days from the date of the receipt of the notice to fulfill any decree that may be passed against you, in this or to cause why you should not furnish such security within five days from the date of receipt of notice and you have failed to furnish security required within five days from the date of receipt of notice. It is the order that you said defendant be and you are

hereby prohibited and restrained until further order of this court. From transferring or changing the properties described in the schedule here into annexed by sale gift or otherwise and that all the persons be and they are hereby prohibited and restrained from receiving the same by purchase, gift or otherwise.

GIVEN UNDER MY HAND AND THE SEAL OF THIS COURT THIS THE 14th DAY DECEMBER, 2021.

Amount: Rs: 20,80,000/-

Hearing Date:

SUPERINTENDENT

PRINCIPAL JUNIOR CIVIL JUDGE COURT

GANNAVARAM.

Affidavit petition copy and schedule copy enclosed.

N.B. The respondent to furnish security within from the date of receipt of this notice which meanwhile attachment will come into effect.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

DOCUMENT NO. 1

FILED BY

ADVOCATE FOR THE PLAINTIFF.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

DOCUMENT NO. 2

FILED BY

ADVOCATE FOR THE PLAINTIFF.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2022
In
O.S.No. 1208 of 2022

Between:

Madamanchi Chandramouli

---Petitioner/Plaintiff.

And

Vykuntapu Pradeep Kumar

---Respondent/Defendant.

AFFIDAVIT FILED BY THE PETITIONER FOR URGENT ORDERS SECTION 139 OF C.P.C.

I, Madamanchi Chandramouli S/o Nagaiah, Hindu, aged about 59 years, Resident of Envy Home Godavari 103, Sri Ramachandra Nagar, Vijayawada-520 003, Cell: 9490538599, Aadhar No. 9058 7122 6616. do hereby solemnly affirm and sincerely state as follows:

1. I am the petitioner herein. I am well acquainted with the facts of the case.
2. I have filed the above named case in this Honorable Court for the recovery of money.
3. As urgent orders have to be obtained in the matter, it is just and necessary in the interests of justice of the petition that the Enclosed.

Be taken on file, urgently and numbered out of order.

Be pleased to consider.

Deponent

Solemnly affirmed before me this the 01 day of July 2022 the contents of this affidavit having been truly and audibly read over and explained in Telugu and admitted by him to the correct, who signed his name. Put His mark in my presence.

Place: Vijayawada, Signed Before me

Date : 01-07-2022

Advocate.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2022
In
O.S.No. 1208 of 2022

Between:

Madamanchi Chandramouli

---Petitioner/Plaintiff.

And

Vykuntapu Pradeep Kumar

---Respondent/Defendant.

OUT OF ORDER

PETITION FILED ON BEHALF OF THE PETITIONER SECTION 57 OF C.R.P.

As orders on the accompanying petition have to be obtained urgently, the Petitioner Prays that the Honorable Court may be pleased to take Suit on file and to number the same OUT OF ORDER in the interest of justice.

Be pleased to consider.

Place: Vijayawada,

Date : 01-07-2022 Advocate for Petitioner.

Mr. A.S.S.S.
Advocates for the Petitioner/Plaintiff.

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE, (JUNIOR DIVISION) AT VIJAYAWADA

I.A. No. of 2022
In
O.S.No. of 2022

Between:

Madamanchi Chandramouli.

---Petitioner/Plaintiff.

And

Vykuntapu Pradeep Kumar.

---Respondent/Defendant.

OUT OF ORDER

PETITION FILED ON BEHALF OF THE PETITIONER SECTION 57 OF C.R.P.

FILED BY:

A. S. SYAM SUNDER,
P. RAJYA LAKSHMI,
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IN THE COURT OF THE PRINCIPAL CIVIL JUDGE,
(JUNIOR DIVISION) AT VIJAYAWADA

DOCUMENT NO. 7

FILED BY

ADVOCATE FOR THE PLAINTIFF.